

		arbitration has been had in accordance with the terms of the agreement, providing the application for the stay is not in default in proceeding with such arbitration.” (9 U.S.C. § 3.) The action is STAYED pending completion of arbitration. The Court sets an ADR Review hearing for September 24, 2026 at 10:30 in C34. Moving Defendants to give notice.
3.	30-2023-01318153 Feng vs. Feng	1. Motion to Enforce Settlement Defendant/Cross-Complainant Paul Ye-Chou Feng (“Paul”) moves for an order enforcing his settlement agreement with plaintiff/Cross-Defendant Rong Feng (“Ron”). Code of Civil Procedure section 664.6 states: If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement. “A court ruling on a motion under Code of Civil Procedure section 664.6 must determine whether the parties entered into a valid and binding settlement. [Citations.] A settlement is enforceable under section 664.6 only if the parties agreed to all material settlement terms. [Citations.] The court ruling on a motion may consider the parties’ declarations and other evidence in deciding what terms the parties agreed to, and the court’s factual findings in this regard are reviewed under the substantial evidence standard. [Citations.] If the court determines that the parties entered into an enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement. [Citation.]” (<i>Hines v. Lukes</i> (2008) 167 Cal.App.4th 1174, 1182.) The parties stipulated that this Court shall retain jurisdiction of this matter regarding any disputes that may arise regarding the interpretation, performance, or enforcement of their settlement agreement pursuant to Code of Civil Procedure section 664.6. (ROA 260.) The parties entered the settlement agreement on October 17, 2025. (Declaration of William C. Kersten, ¶ 1, Exhibit 1.) It provides that Ron shall receive 100% of Mrs. Feng’s financial assets held at Cathey United Bank in Taiwan and Paul shall receive none. Ron shall pay \$278,750 in cash to the William C. Kersten Trust Account and 50% shall be immediately released to Paul and the remaining \$139,375 shall remain in the William C. Kersten Trust Account until Ron receives Mrs. Feng’s Taiwan bank assets. The agreement expressly states that “Ron shall use his best efforts to obtain Mrs. Feng’s funds held in Taiwan in a timely manner.” The agreement notes that Paul has been represented by Ms. Eve Chen of the Eiger Law Office in Taiwan and Ron has been represented by Hung Ou Yang, Esq. in Taiwan and both parties agree to instruct both attorneys to cooperate in order to provide Ron with Mrs. Feng’s assets. Ron shall pay all attorney fees regarding services of Mr. Yang and attorney fees incurred by Ron with regard to any legal services provided by Ms. Chen shall be paid as follows: 75% by Ron and 25% by Paul. Ms. Chen provided Paul with a quote for a \$2,500 retainer fee along with an invoice in the same

amount. (Declaration of Paul Ye-Chou Feng, ¶ 1.) Ron has refused to pay 75% of Ms. Chen's invoice.

On November 17, 2025, the issue of Ron's nonpayment of Ms. Chen's retainer was mediated before the Honorable James P. Gray (Ret.) and Ron agreed to pay his 75% share as a result of the mediation by November 21, 2025. (Kersten Decl., ¶ 7.) However, he has failed to do so. (*Ibid.*) Paul now brings this motion to enforce the parties' settlement agreement and seeks an order compelling Ron to pay \$1,875.00 to Ms. Chen and instruct his attorney to cooperate with Ms. Chen in the transfer of assets, as well as an order that the \$139,375.00 held in trust be released immediately to Paul.

There is no dispute that the parties entered into the settlement agreement or that Ron agreed to pay 75% of Ms. Chen's retainer agreement during a teleconference on November 17, 2025 with the parties' mediator. The settlement agreement notes that Paul has been represented by Ms. Chen in Taiwan and goes on to provide that Ron shall pay 75% of any and all attorney fees and costs incurred by Ron with regard to any legal services provided by Ms. Chen. The agreement also requires Ron to use his "best efforts" to obtain Mrs. Feng's funds held in Taiwan in a timely manner.

By refusing to pay 75% of Ms. Chen's retainer as agreed, the Court finds that Ron is delaying the transfer of Mrs. Feng's funds held in Taiwan to him, in breach of his obligation to use his best efforts to obtain the funds in a timely manner. The timeliness of Ron obtaining those funds matters to Paul because the remaining \$139,375.00 held in the William C. Kersten Trust Account cannot be released to Paul until Ron obtains Mrs. Feng's funds.

Ron argues he has fully performed his obligations by transferring his 2/3 ownership interest in real property and paying Paul \$278,750.00. However, the agreement also provides that Ron must use best efforts to obtain Mrs. Feng's funds in a timely manner, which he has failed to do. Ron's partial compliance with his obligations does not negate the fact that he has delayed receipt of Mrs. Feng's funds.

Ron also argues that Paul himself has failed to cooperate in the transfer of funds by failing to obtain his Taiwanese passport until February 26, 2026 and refusing to provide a power of attorney or equivalent authorization. Ron argues that Paul's conduct is a material breach and Paul cannot use his own delay to manufacture a basis for enforcement of the agreement.

Attached to Ron's opposition is a declaration by his Taiwan counsel, Mr. Yang, in which Mr. Yang asserts that Paul and Ron must produce their Taiwanese IDs or Taiwanese passports to prove they are the children of Mrs. Feng in order to facilitate the asset transfer. Paul filed a declaration in this action (ROA 287) stating that he applied for his Taiwanese passport on February 26, 2026.

While it appears that Paul has also contributed to the delay in the transfer of assets by delaying obtaining a Taiwanese passport, the Court finds that his delay is not a material breach. Rather, it seems that Paul was not intentionally delaying the transfer and instead attempting to facilitate it by means that did not require him to obtain a Taiwanese passport. On the other hand, Ron has refused to pay 75% of Ms. Chen's retainer despite his express agreement to do so. Paul's own delay does not relieve Ron of his own obligation to use his own best efforts to effect the transfer in a timely manner.

In light of the above, the motion is **GRANTED to the extent it seeks to compel Ron to immediately pay to the William C. Kersten Trust Account \$1,875.00 to be paid to Ms. Chen**

		and to instruct his Taiwan counsel to cooperate with Ms. Chen to transfer Mrs. Feng’s financial assets. Paul also asks that the \$139,375 held in trust by the undersigned for Paul Feng be immediately released to him. However, the agreement states that the balance is not to be released to Paul until Ron receives Mrs. Feng’s funds. The Court <i>declines to order immediate release of the funds, which is contrary to the parties’ agreement.</i> Paragraph 24 of the settlement agreement provides, in relevant part: “Should court intervention be required to resolve any disputes with regard to this Agreement, the prevailing party under <u>Code of Civil Procedure</u> § 664.6 shall be entitled to his reasonable attorney fees and costs.” Paul seeks attorney fees against Ron pursuant to this section. However, because both parties have engaged in conduct that has resulted in delay, the request for attorney fees is DENIED. Moving party to give notice.
4.	30-2025-01500072 Salmeron v. Audicus	1. Motion to Compel Answers to Form Interrogatories 2. Motion to Compel Answers to Form Interrogatories 3. Motion to Compel Answers to Form Interrogatories 4. Motion to Compel Answers to Form Interrogatories 5. Motion to Compel Answers to Form Interrogatories 6. Motion to Compel Answers to Form Interrogatories 7. Motion to Compel Answers to Form Interrogatories 8. Motion to Compel Answers to Form Interrogatories 9. Motion to Compel Arbitration 10. Motion to Deem Facts Admitted 11. Motion to Deem Facts Admitted 12. Order to Show Cause re: Appointment of Referee Defendants Audicus, Inc. and Andre Sequin (“Defendants”) move to compel arbitration. Plaintiff Maria Medrano Salmeron (“Plaintiff”) opposes the motion. In compelling arbitration, “the moving party bears the burden of producing ‘prima facie evidence of a written agreement to arbitrate the controversy.’” (<i>Gamboa v. Northeast Community Clinic</i> (2021) 72 Cal.App.5th 158, 165; Cal. Rules of Court, rule 3.1330.) “The moving party can meet its initial burden by attaching to the motion or petition a copy of the arbitration agreement purporting to bear the opposing party’s signature.” (<i>Ibid.</i> [internal citations omitted].) Importantly, “[f]or this step, ‘it is not necessary to follow the normal procedures of document authentication.’” (<i>Gamboa v. Northeast Community Clinic</i> (2021) 72 Cal.App.5th 158, 165 [citing <i>Condee v. Longwood Management Corp.</i> (2001) 88 Cal.App.4th 215, 218].) In fact, the moving party can meet its burden of establishing “evidence of a written agreement to arbitrate the controversy” by (1) “attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party’s] signature” or (2) “setting forth the agreement’s provisions in the motion.” (<i>Ibid.</i>) “If the moving party meets its initial prima facie burden and the opposing party does not dispute the existence of the arbitration agreement, then nothing more is required for the moving party to